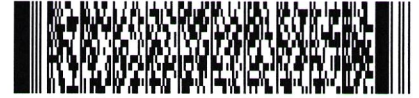


Easement

Version 3.5 released on 7/1/25



PW0101635

CITY COUNCIL USE ONLY

Date Received: _____
 Committee Date: _____
 1st Agenda Date: _____

Tracking #: _____
 Committee: _____
 Hearing Date: _____
 2nd Agenda Date: _____

CITY CLERK USE ONLY

☐ Scanned
☐ Posted

Date: 11.05.2025
 Item #: 2511.02855

*All department items requiring Council approval must be submitted through the Mayor's Office.***Primary Details****Board Approval****Other Board Name****City Council Approval**

☒ Yes ☐ No

Department
Public Works

Contact Name
Courtney Jones 10.27.25

Email
courtneyjones@cityoftulsa.org

Phone
918-596-9549

Easement Type
Utility

Owner-Grantor
Atmoss, LLC

Bid/Project Number
IDP 197415

Project Title
Project Anthem

Council District
6

Section
8

Township
19

Range
15

Addition
UNPLATTED

Lot

Block

Address
21304 East 11th Street

Parcel Number
740

Additional Information/Tracking Number
Property is located in Wagoner County

Budget**Contract Types**

☒ No Payments Involved
☐ Revenue Contracts
☐ Expense Contracts

Funding Source(s)**DONATION:**

TOTAL: \$0.00

Approvals

Department:

Legal:

Board:

Mayor:

Other:

[Signatures]
 Krystal S. Reyes
 Mayor Pro Tem

Date: 10.27.25

Date: 10/29/2025

Date: NOV 05 2025

Date:

Date:

Policy Statement**Background Information**

This Utility easement is being donated by Atmoss, LLC, a Delaware limited liability company, as a requirement of IDP 197415. This Utility easement is required for infrastructure improvements at Project Anthem.

PDZ: 10/27/25 MSL: 10/27/25 swb

Summation of the Requested Action

Mayoral approval and City Council acceptance.

Other Pertinent Details**Processing Information for City Clerk's Office****Post Execution Processing**

☐ Mail vendor copy (add'l signature copies attached)
☒ Must be filed with other governmental entity
☐ Add'l governmental entity approval(s) required

Additional Routing, Processing or Contact Details

Original to be picked up by Courtney Jones for further processing. (6-9549)

2025-RPZ-0567

UTILITY EASEMENT

KNOW ALL MEN BY THESE PRESENTS:

That the undersigned, **ATMOSS, LLC, a Delaware limited liability company**, (Grantor), the owner of the legal and equitable title to the following described real estate, for and in consideration of the sum of TEN AND NO/100 (\$10.00) DOLLARS, cash in hand paid by the **CITY OF TULSA, OKLAHOMA**, a municipal corporation, (CITY) and other good and valuable considerations, receipt of which is hereby acknowledged, does hereby grant and convey unto the said City, a perpetual easement, through, over, under and across the following described property:

See Exhibit "A"

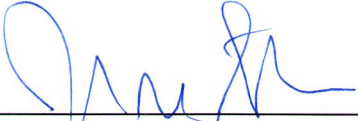
for the purpose of permitting the City to construct all public utilities thereon, through, over, under, and across said property, together with all necessary and convenient appurtenances thereto; and to use and maintain the same and of affording the City, its officers, agents, employees, and/or all persons under contract with it, the right to enter upon said premises and strip of land for the purpose of surveying, excavating for, constructing, operating, repairing, and maintaining of such construction.

The City is hereby given and granted the exclusive possession of said above described premises for the purposes aforesaid and Grantor, for itself, its successors and assigns, covenants and agrees that no building, structure, fence, wall or other above ground obstruction will be placed, erected, installed or permitted upon the above described land; and further covenants and agrees that in the event the terms of this paragraph are violated by the Grantor or any person in privity with it, such violation will be promptly corrected and eliminated immediately upon receipt of notice from City, or City shall have right to remove or otherwise eliminate such violation, and Grantor, its successors and assigns, shall promptly pay the actual cost thereof.

TO HAVE AND TO HOLD such easement and right-of-way unto the City, its successors or assigns, forever.

Dated this 15th day of October, 2025.

APPROVED AS TO FORM:



Asst. City Attorney

APPROVED AS TO SUBSTANCE:



Director

ACCEPTED BY CITY COUNCIL:

Date: _____

BY: _____
Name: Phil Lakin, Jr.
Title: Chair

APPROVED BY MAYOR:

CITY OF TULSA, OKLAHOMA,
a municipal corporation

Date: _____

BY: _____
Name: Monroe Nichols IV
Title: Mayor

ATTEST:

City Clerk

[illegible]

Before me, a Notary Public in and for said County and State, on the ____ day of _____, 2025, personally appeared Phil Lakin, Jr., to me known to be the identical person who accepted the within and foregoing instrument as Chair of the City Council of the City of Tulsa, Oklahoma, and acknowledged to me that he accepted the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City Council of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

[illegible]

Before me, a Notary Public in and for said County and State, on the ____ day of _____, 2025, personally appeared Monroe Nichols IV, to me known to be the identical person who approved the within and foregoing instrument as Mayor of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

EP

JMS

LEGAL DESCRIPTION - UTILITY EASEMENT

For Permanent utility purposes a tract of land lying in the Northwest Quarter (NW/4) of Section Eight (8), Township Nineteen (19) North, Range Fifteen (15) East of the Indian Base and Meridian (I.B. & M.), Wagoner County, Oklahoma, being more particularly described by Darrel Ray Mason OKLS1690 on May 22, 2025 as follows:

COMMENCING at the Northeast Corner of the Northwest Quarter, Section 8, Township 19 North, Range 15 East of the I.B.M, Thence along the North line of said Northwest Quarter, as the Basis of Bearings, S 89° 00' 24" W a distance of 253.93 feet; Thence leaving said North section line S 00° 59' 36" E, a distance of 50.00 feet the **POINT OF BEGINNING**; Thence S 00° 59' 36" E, a distance of 20.00 feet; Thence S 89° 00' 24" W, a distance of 1065.50 feet; Thence N 00° 59' 36" W, a distance of 20.00 feet; Thence N 89° 00' 24" E, a distance of 1065.50 feet to the **POINT OF BEGINNING**.

This description contains 21,310 sq. ft. or 0.489 acres, more or less.

Basis of Bearings:

S 89° 00' 24" W along North line said NW/4.8-T19N-R15E
Grid, based on NAD 83 Oklahoma State Plane Coordinate System North Zone

Date of last visit: 8-21-2024

I, Darrel Ray Mason, a Licensed Professional Land Surveyor in the State of Oklahoma, certify that the attached description is a true representation of the property described and meets the minimum technical standards for land surveying of the State of Oklahoma.



[Signature]
Darrel Ray Mason

7/29/25
Date

OK PLS NO. 1690 - Expires August 31, 2026

OK CA NO. 2483 - Expires June 30, 2025

PROJECT NO: 022-02495

DRAWN BY: TLM

DATE: 05.22.2025

PROPOSED
DESCRIPTION
UTILITY EASEMENT

olsson®

11600 Broadway Extension
Suite 300
Oklahoma City, OK 73114
olsson.com
TEL 405.242.6600
Olsson - Survey
Oklahoma COA #2483

EXHIBIT

A

PLAT OF SURVEY

POINT OF COMMENCEMENT

NE CORNER OF THE
NORTHWEST QUARTER
SECTION 8, T-19-N, R-15-E
FOUND $\frac{1}{2}$ " REBAR

POINT OF BEGINNING

S00°59'36"E 20.00'

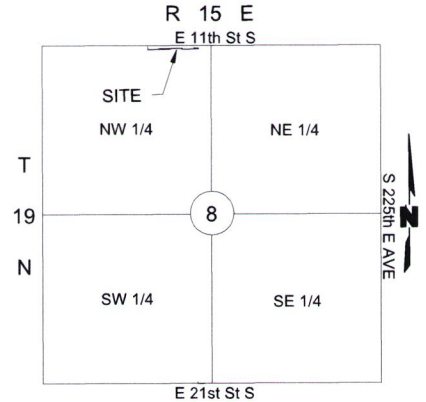
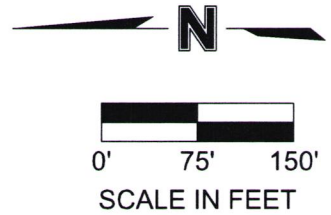
S89°00'24"W 253.93'
(BASIS OF BEARINGS)

S00°59'36"E 50.00'

LEGEND

-  SECTION CORNER
-  SET $\frac{1}{2}$ " REBAR W/ CAP
"OLSSON CA 2483"
-  SECTION LINE
-  STATUTORY R.O.W.
-  PROPOSED EASEMENT

BASIS OF BEARING
Oklahoma State Plane NAD83
Oklahoma North Zone
S89°00'24"W
Along the North Line of said NW/4
8-T19N-R15E



LOCATION MAP

NOT TO SCALE

I, DARREL RAY MASON, OF OLSSON, CERTIFY THAT THE ATTACHED PLAT OF SURVEY IS A TRUE REPRESENTATION OF THE EASEMENT AS DESCRIBED, AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.

DATE OF LAST VISIT: 8-21-2024



50.00'
FUTURE R.O.W.
PROPOSED
BY SEPARATE
INSTRUMENT

N89°00'24"E 1065.50'
S89°00'24"W 1065.50'

20.00'

20.00' PROPOSED PERMANENT
UTILITY EASEMENT
21,310 SFT. OR 0.489 ACRES +/-

ATMOSS LLC C/O MCAFEE & TAFT

N00°59'36"W 20.00'

PROJECT NO: 022-02495

DRAWN BY: TLM

DATE: 05.22.2025

EXHIBIT
UTILITY EASEMENT

olsson®

11600 Broadway Extension
Suite 300
Oklahoma City, OK 73114
olsson.com
TEL 405.242.6600
Olsson - Survey
Oklahoma COA #2483

EXHIBIT

A